

Subhash Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 February 2017 · WRIT - C No. 5929 of 2017 · **Writ disposed; petitioner left to raise the billing dispute under clause 6.5.**

HEADNOTE

A consumer dissatisfied with an electricity bill must raise that dispute under Clause 6.5 of the Electricity Supply Code, 2005. The High Court disposed of the writ without examining the bill, leaving that statutory remedy open.

FACTUAL SUMMARY

Subhash Yadav filed Writ-C No. 5929 of 2017 in the High Court of Judicature at Allahabad against the State of Uttar Pradesh and two others. He was dissatisfied with an electricity bill issued to him on 25 December 2016. Manoj Yadav appeared for the petitioner; the Chief Standing Counsel and Mahboob Ahmad appeared for the respondents. On 8 February 2017 a Division Bench of Dilip Gupta and Siddhartha Varma, JJ. heard the petition and disposed of it without examining the correctness of that bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory objection under clause 6.5

HOLDING

A dispute about an electricity bill is to be raised by invoking Clause 6.5 of the Electricity Supply Code, 2005; the writ is disposed of leaving that remedy open to the petitioner. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 25 DECEMBER 2016

Left open for the petitioner to pursue under clause 6.5. ¶ 1